

part of Defendant that led to the Default and/or Default Judgment.

**4. Defendant Fails To Demonstrate That Defendant Did Not Have Actual Notice Of The Pending Lawsuit.**

Code of Civil Procedure section 473.5 allows a party to bring a motion to set aside a default entered against the party where “service of a summons has not resulted in actual notice to a party in time to defend the action.” Code Civ. Proc. § 473.5(a). The motion “shall be accompanied by an affidavit showing under oath that the party’s lack of actual notice in time to defend the action was not caused by his or her avoidance of service or inexcusable neglect.” *Id.* § 473.5(b).

Defendant has not demonstrated a lack of actual notice in time to defend the action.

First, the Court does not find credible Defendant’s assertion that Defendant “only became aware of this case in October 2025...” See Supporting Declaration, Ins. 15-16. Court records show that, as early as 2019, Defendant was being served with judgment collection paperwork at the 1812 Mt. Goethe Court address in Antioch that she admits was her residence as of October 1, 2017. See e.g. Memorandum of Costs filed October 21, 2019; see Supporting Declaration, Ins. 14-15. This belies Defendant’s assertion that Defendant was not aware of the existence of the lawsuit until late 2025 and Defendant has not otherwise proffered persuasive evidence to demonstrate otherwise.

Second, and most importantly, as pointed out in the Opposition papers, the request to vacate the Default and Default Judgment on this ground is untimely. Relief under Code of Civil Procedure section 473.5 is time barred. See Code Civ. Proc. § 473.5(a) (“The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default or default judgment has been entered.”). Defendant’s motion was brought more than two years after the entry of the subject Default Judgment. Indeed, the Default and Default Judgment were entered more than seven years ago. This would exceed even the longer outside time limits for cases involving a plaintiff “debt buyer.” See *id.* at § 1788.61(a)(2).

Disposition

The Court finds and orders as follows:

1. The Motion to Vacate Default Judgment is DENIED.

**5. 9:00 AM CASE NUMBER: MSL21-03557**  
**CASE NAME: BANK OF AMERICA, N.A. VS. JEFFREY KRATO**  
**\*HEARING ON MOTION IN RE: ORDER VACATING DISMISSAL AND ENTRY OF JUDGMENT FILED BY**  
**PLAINITFF ON 8/19/2025**  
**FILED BY:**  
**\*TENTATIVE RULING:\***

Plaintiff Bank of America, N.A. ("Plaintiff") filed a Motion for Order Setting Aside and Vacating Its Prior Order of Dismissal and for Entry of Judgment Pursuant to Stipulation on August 19, 2025 ("Motion to Enter Stipulated Judgment after Default"). The Motion to Enter Stipulated Judgment after Default was set for hearing on November 19, 2025.

On November 19, 2025, the Court, *sua sponte*, reset the motion for hearing on December 9, 2025, notice of which was duly given to the parties by the Clerk of the Court. See Notice of Hearing dated November 21, 2025.

#### Background

The parties entered into that certain settlement agreement filed December 2, 2022 (the "Settlement Agreement"), the terms of which included payment by the defendant Jeffrey Krato ("Defendant") in the amount of \$18,811.61 plus costs of \$447.00, to be paid in accordance with the terms thereof (the "Payment Terms and Conditions"). See Declaration of Michael Mallonga filed August 19, 2025 ("Supporting Declaration"), ¶13 and **Exhibit 1** thereto. As part of the Settlement Agreement, the parties entered into a stipulation for entry of judgment in the event of a default. *Id.*, **Exhibit A**, ¶¶1-4 and 7.

Defendant defaulted on the Payment Terms and Conditions. See Supporting Declaration, ¶16. No notice or opportunity to cure is required under Settlement Agreement. Settlement Agreement, ¶17.

After credit for amounts paid, there remains \$12,396.61 due and owing, plus costs of \$928.67, for a total of **\$13,325.28**. See Supporting Declaration, ¶¶9-10.

#### Analysis

Defendant was duly served with the motion. The motion is unopposed.

#### Disposition

The Court finds and orders as follows:

1. The Court finds that Defendant was duly served with the motion.
2. The Court finds that Defendant is in default of the Settlement Agreement.
3. The Motion to Enter Stipulated Judgment after Default is GRANTED. Plaintiff shall have judgment against Defendant in the principal amount of \$12,396.61, plus costs of \$928.67, for a total judgment of **\$13,325.28**.
4. Plaintiff's submitted form of order and/or money judgment against Defendant will be entered by the Court. Any prior dismissal entered herein against the Defendant is hereby set aside in connection with entry of such judgment.